

HOUSE BILL 780

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 4, Chapter 3; Title 4, Chapter 49; Section 9-16-101; Title 54, Chapter 4; Title 55, Chapter 4; Title 57, Chapter 5, Part 2; Title 57, Chapter 3, Part 3; Title 67, Chapter 3, Part 9; Title 67, Chapter 4, Part 9 and Title 67, relative to allocations to counties and municipalities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 67-6-103(a)(3)(A), is amended by adding the language "and according to subdivision (a)(3)(G)" immediately after the language "according to the latest federal census and other censuses authorized by law".

SECTION 2. Tennessee Code Annotated, Section 67-6-103(a)(3), is amended by adding the following as a new subdivision (G):

Notwithstanding the right or ability of a county or municipality to take a special census at any time during the interim between the regular decennial federal census under this section or another law, the department of economic and community development shall revise and certify the population of each county and municipality, and the aggregate population of the state, prior to July 1 each year during the interim between the regular decennial federal census according to this subdivision (a)(3)(G) for purposes of ensuring equitable allocation and distribution of moneys under this subdivision (a)(3). The Boyd Center for Business and Economic Research at the University of Tennessee, through the Tennessee state data center, shall generate annual population estimates for each county and municipality and provide the estimates to the department of economic and community development for review and certification. Prior to July 1, the department of economic and community development shall provide

the revised, certified populations of each county and municipality to the department of revenue and the department of finance and administration. The allocation and distribution of moneys pursuant to this subdivision (a)(3) must be made according to the revised populations certified under this subdivision (a)(3)(G), except in instances where a jurisdiction's population is revised as a result of a special census or in a year in which populations are revised as a result of the regular decennial federal census.

SECTION 3. Tennessee Code Annotated, Section 67-6-103(j)(4), is amended by adding the language "or according to subdivision (a)(3)(G)" immediately after the language "according to the latest federal census or other censuses authorized by law".

SECTION 4. Tennessee Code Annotated, Title 4, Chapter 3, Part 7, is amended by adding the following as a new section:

4-3-710.

(a) Notwithstanding the right or ability of a county or municipality to take a special census during the interim between the regular decennial federal census, the department of economic and community development shall revise and certify the population of each county and municipality, and the aggregate population of the state, prior to July 1 each year during the interim between the regular decennial federal census according to this section for purposes of ensuring equitable population-based allocation and distribution of moneys to counties and municipalities.

(b) The Boyd Center for Business and Economic Research at the University of Tennessee, through the Tennessee state data center, shall generate annual population estimates for each county and municipality and provide the estimates to the department of economic and community development for review and certification.

(c) Prior to July 1, the department of economic and community development shall provide the revised, certified populations of each county and municipality to the

department of revenue and the department of finance and administration. The allocation and distribution of moneys to counties and municipalities must be made according to the revised populations certified under this section, except in instances where a jurisdiction's population is revised as a result of a special census or in a year in which populations are revised as a result of the regular decennial federal census.

SECTION 5. Tennessee Code Annotated, Title 67, Chapter 1, Part 1, is amended by adding the following as a new section:

67-1-119.

Notwithstanding another law to the contrary, the allocation and distribution of moneys to counties and municipalities under this title, title 54, title 55, or title 57 based on population must be made according to the revised populations certified by the department of economic and community development under § 4-3-710, except in instances where a jurisdiction's population is revised as a result of a special census or in a year in which populations are revised as a result of the regular decennial federal census.

SECTION 6. Tennessee Code Annotated, Title 4, Chapter 3, Part 10, is amended by adding the following as a new section:

4-3-1015.

Except as otherwise expressly provided by law, the allocation and distribution of moneys to counties and municipalities based on population must be made according to the revised populations certified by the department of economic and community development under § 4-3-710, except in instances where a jurisdiction's population is revised as a result of a special census or in a year in which populations are revised as a result of the regular decennial federal census.

SECTION 7. Tennessee Code Annotated, Section 4-49-104(e)(2), is amended by adding the following language at the end of the subdivision:

Notwithstanding another law to the contrary, the allocation and distribution of moneys to counties and municipalities under this subdivision (e)(2) must be made according to the revised populations certified by the department of economic and community development under § 4-3-710, except in instances where a jurisdiction's population is revised as a result of a special census or in a year in which populations are revised as a result of the regular decennial federal census.

SECTION 8. This act takes effect January 1, 2026, the public welfare requiring it.